



KIRKLAND & ELLIS
A PARTNERSHIP INCLUDING PROFESSIONAL CORPORATIONS

Chicago Office
200 East Randolph Drive
Chicago, Illinois 60601
Telex 25-4361
312 861-2000

1999 Broadway
Denver, Colorado 80202

303 291-3000

Washington Office
655 Fifteenth Street, N.W.
Washington, D.C. 20005
202 879-5000

April 11, 1986

To Call Writer Direct
303 291- 3034

William A. Love, Esq.
Wells, Love & Scoby
225 Canyon Boulevard
Boulder, Colorado 80302

Re: Berthoud Estates Homeowners
Association/Southwestern
Portland Cement Company

Dear Bill,

Our law firm represents Southwestern Portland Cement Company. Southwestern has asked us to respond to the recent letter you wrote on behalf of the Berthoud Estates Homeowners Association. Your letter expressed the concern of homeowners within the subdivision that blasting at Southwestern's limestone quarry in Larimer County might damage homes located within the subdivision.

Southwestern wishes to assure the Homeowners Association that the blasting and mining at the quarry site is being conducted strictly in accordance with accepted mining practices and in compliance with all applicable governmental standards. As we discussed over the telephone recently, Southwestern conducts seismic monitoring to ensure compliance with governmental standards relating to both air percussion and ground movement caused by any blasting at the quarry. Reports of the seismic monitoring are then prepared and certified by an independent consultant who is a registered geophysicist.

After receiving your letter, Southwestern officials reviewed the seismic reports for at least the last three years and confirmed that all blasting was conducted well within governmental standards for air percussion and ground movement. In this regard, I am also enclosing a copy of a memorandum from an official with the Larimer County

KIRKLAND & ELLIS

William A. Love, Esq.
April 11, 1986
Page 2

Health Department who monitored a quarry blast in January, 1986. The county health official concludes that the blast complied with air quality regulations and applicable state noise statutes.

Limestone mining at the quarry operations have been conducted since 1974. Our understanding is that the mining predated the construction of the homes in your client's subdivision. In any event, Southwestern's mining plan does not anticipate moving its mining operations closer to your client's subdivision, and, in fact, mining will gradually shift to the west and to the south.

I hope this letter adequately responds to the concerns you expressed in your letter. Southwestern, of course, would be willing to provide you with any further information which could alleviate your client's concerns and respond to any specific questions which the homeowners in the Association may have concerning the quarry. To expedite such matters, I would appreciate it if you could direct any such inquiries through me.

Sincerely,



Raymond L. Petros, Jr.

RLP:cav
Enc.